

Qualifications of members

5. Every citizen of or over the age of eighteen years who is resident in the State is qualified to be a member of the Legislative Assembly, unless he is disqualified for being a member by the Federal Constitution or this Constitution or by any such law as is mentioned in section 6 to the Eighth Schedule to the Federal Constitution.

Disqualification for membership of Legislative Assembly

6. (1) Subject to the provisions of this section, a person is disqualified for being a member of the Legislative Assembly if—

- (a) he is and has been found or declared to be of unsound mind;
- (b) he is an undischarged bankrupt;
- (c) he holds an office of profit;
- (d) having been nominated for election to either House of Parliament or to the Legislative Assembly, or having acted as election agent to a person so nominated, he has failed to lodge any return of election expenses required by law within the time and in the manner so required;
- (e) he has been convicted of an offence by a court of law in the Federation (or, before Malaysia Day, in the territories comprised in the States of Sabah and Sarawak or in Singapore) and sentenced to imprisonment for a term of not less than one year or to a fine of not less than two thousand ringgit and has not received a free pardon;
- (f) he is disqualified under any law relating to offences in connection with elections to either House of Parliament or to the Legislative Assembly by reason of having been convicted of such an offence or having in proceedings relating to such an election been proved guilty of an act constituting such an offence; or
- (g) he has voluntarily acquired citizenship of, or exercised rights of citizenship in, a foreign country or has made a declaration of allegiance to a foreign country.

(2) The disqualification of a person under paragraph (d) or paragraph (e) of subsection (1) may be removed by the Ruler and shall, if not so removed, cease at the end of the period of five years beginning with the date on which the return mentioned in the said paragraph (d) was required to be lodged or, as the case may be, the date on which the person convicted as mentioned in the said paragraph (e) was released from custody or the date on which the fine mentioned in the said paragraph (e) was imposed, and a person shall not be disqualified under paragraph (g) of subsection (1) by reason only of anything done by him before he became a citizen.

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NOTES

Eighth Schedule—(cont.)

Section 6: See sections 5 & 21(2).

Paragraph 6(1)(e)

- (a) The present paragraph was inserted by Act 14/1962, paragraph 28(b), in force from 21-06-1962. The original paragraph read as follows:
 - “(e) he has been convicted of an offence by a court of law in the Federation and sentenced to imprisonment for a term of not less than two years and has not received a free pardon;”.
- (b) The words “(or, before Malaysia Day, in the territories comprised in the Borneo States or in Singapore)” were inserted by Act 26/1963, section 70, in force from 16-09-1963.
- (c) The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.
- (d) The word “ringgit” substituted for the word “dollars” by Act 160, subsection 2(2), in force from 29-08-1975.

Subsection 6(2)

The words “or the date on which the fine mentioned in the said paragraph (e) was imposed” were inserted by Act 14/1962, paragraph 28(c), in force from 21-06-1962.

(3) Notwithstanding anything contained in the foregoing provisions of this section where a member of the Legislative Assembly becomes disqualified from continuing to be a member thereof pursuant to paragraph (e) of subsection (1), or under a law as is referred to in paragraph (f) of subsection (1)—

(a) the disqualification shall take effect upon the expiry of fourteen days from the date on which he was—

(i) convicted and sentenced as specified in the aforesaid paragraph (e); or

(ii) convicted of an offence or proved guilty of an act under a law as is referred to in the aforesaid paragraph (f); or

(b) if within the period of fourteen days specified in paragraph (a) an appeal or any other court proceeding is brought in respect of such conviction or sentence, or in respect of being so convicted or proved guilty, as the case may be, the disqualification shall take effect upon the expiry of fourteen days from the date on which such appeal or other court proceeding is disposed of by the court; or

(c) if within the period specified in paragraph (a) or the period after the disposal of the appeal or other court proceeding specified in paragraph (b) there is filed a petition for a pardon, such disqualification shall take effect immediately upon the petition being disposed of.

(4) Subsection (3) shall not apply for the purpose of nomination or election of any person to the Legislative Assembly, for which purpose the disqualification shall take effect immediately upon the occurrence of the event referred to in paragraph (e) or (f), as the case may be, of subsection (1).

(5) A person who resigns his membership of the Legislative Assembly of this State or any other State, shall, for a period of five years beginning with the date on which his resignation takes effect, be disqualified from being a member of the Legislative Assembly of this State.

Provision against double membership

7. A person shall not at the same time be a member of the Legislative Assembly for more than one constituency.

Decision as to disqualification

8. (1) If any question arises whether a member of the Legislative Assembly has become disqualified for membership, the decision of the Assembly shall be taken and shall be final:

Provided that this section shall not be taken to prevent the practice of the Assembly postponing a decision in order to allow for the taking or determination of any proceedings that may affect the decision (including proceedings for the removal of the disqualification).

(2) Where a member of the Legislative Assembly becomes disqualified under paragraph (e) of subsection (1) of section 6, or under a law as is referred to in paragraph (f) of subsection (1) of section 6, the foregoing subsection (1)

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Eighth Schedule—(cont.)

Subsections 6(3) & (4): Inserted by Act A566, paragraph 21(a), in force from 16-12-1983.

Subsection 6(5): Inserted by Act A767, section 6, in force from 11-05-1990.

Section 8

Proviso added by Act 26/1963, subsection 11(2), in force from 16-09-1963.

Subsection (1): Renumbered by Act A566, paragraph 21(b), in force from 16-12-1983.

Subsection (2): Inserted by Act A566, paragraph 21(b), in force from 16-12-1983.

shall not apply, and he shall cease to be a member of the Legislative Assembly, and his seat shall become vacant, immediately upon his disqualification taking effect in accordance with subsection (3) of section 6.

Summoning, prorogation and dissolution of Legislative Assembly

9. (1) The Ruler shall from time to time summon the Legislative Assembly and shall not allow six months to elapse between the last sitting in one session and the date appointed for its first sitting in the next session.

(2) The Ruler may prorogue or dissolve the Legislative Assembly.

(3) The Legislative Assembly unless sooner dissolved shall continue for five years from the date of its first sitting and shall then stand dissolved.

(4) Whenever the Legislative Assembly is dissolved a general election shall be held within sixty days from the date of the dissolution and the new Legislative Assembly shall be summoned to meet on a date not later than one hundred and twenty days from that date.

(5) A casual vacancy shall be filled within sixty days from the date on which it is established by the Election Commission that there is a vacancy:

Provided that if a casual vacancy is established on a date within two years of the date the Legislative Assembly shall, in accordance with subsection (3), stand dissolved, such casual vacancy shall not be filled unless the Speaker notifies the Election Commission in writing that the numerical strength of the party that constitutes a majority of all the members of the Legislative Assembly is being affected by such vacancy, in which event such vacancy shall be filled within sixty days from the date of the receipt of that notification.

Speaker of the Legislative Assembly

10. (1) The Legislative Assembly shall from time to time elect as Speaker such person as the Assembly may determine and shall transact no business when the office of the Speaker is vacant other than the election of the Speaker.

(1A) A person shall not be elected to be the Speaker unless he is a member or qualified to be a member of the Legislative Assembly.

(1B) Any person elected as Speaker who is not a member of the Legislative Assembly—

(a) shall, before he enters upon the duties of his office, take and subscribe before the Assembly an oath of office; and

(b) shall, by virtue of holding his office, be a member of the Assembly additional to the members elected to the Assembly:

Provided that paragraph (b) shall not have effect for the purposes of the provisions of section 2 and no person shall be entitled by virtue of that paragraph to vote on any matter before the Assembly.

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Eighth Schedule—(cont.)

Section 9

Subsection (3): Section 4 of Act 27/1968, in force from 09-09-1968, read as follows:

“4. Notwithstanding the provisions of section 9(3) of the Eighth Schedule it is provided that in the case of Sarawak, the Council Negri existing at the commencement of this Act shall not be subject to the prescribed period of five years for it to stand dissolved but shall stand dissolved on the date on which the Federal Parliament is next dissolved or next stands dissolved after the date of commencement of this Act.”.

Subsection (4)

1. The words “in the States of Malaya and ninety days in the Borneo States” were inserted by Act 59/1966, section 2, in force from 19-09-1966. The Act also substituted the words “one hundred and twenty days” for the words “ninety days”.
2. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.
3. The words “in the States of Malaya and ninety days in the States of Sabah and Sarawak” were deleted by Act A585, paragraph 27(a), in force from 14-04-1984.

Subsection (5)

1. The words “or in the case of the Legislative Assembly of each of the Borneo States within ninety days” were inserted by Act 59/1966, section 2, in force from 19-09-1966.
2. The words “is established that there is a vacancy” substituted for the word “occurs” by Act 26/1963, subsection 11(2), in force from 16-09-1963.
3. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.
4. The proviso was inserted by Act A1, section 3, in force from 18-11-1968.
5. The words “or in the case of each of the Legislative Assembly of each of the States of Sabah and Sarawak within ninety days” were deleted by Act A585, paragraph 27(b), in force from 14-04-1984.
6. The words “by the Election Commission” were inserted after the words “it is established” by Act A585, paragraph 27(c), in force from 14-04-1984.
7. The proviso was substituted by Act A857, section 4, in force from 20-08-1993. The previous proviso read as follows:

“Provided that if a casual vacancy is established on a date within six months of the date the Legislative Assembly shall, in accordance with subsection (3) of this section stand dissolved, such casual vacancy shall not be filled.

Section 10

See section 23.

Subsections (1), (1A), (1B) & (2)

The present subsections was substituted by Act A919, subparagraph 2(a)(ii), in force from 21-07-1995. The original subsections 10(1) and (2) before amendment read as follows:

“10. (1) The Legislative Assembly shall from time to time choose one of its members to be Speaker and shall transact no business while the office of Speaker is vacant other than the election of a Speaker.

(2) A member holding office as Speaker shall vacate his office on ceasing to be a member of the Legislative Assembly or upon being disqualified under subsection (4), and may at any time resign his office.”.

Subsection (2)

The words “or upon being disqualified under subsection (4),” inserted after the word “Assembly” by Act A514, section 16, in force from 15-5-1981.

- (2) The Speaker may at any time resign his office and shall vacate his office—
- (a) when the Legislative Assembly first meets after a general election;
 - (b) on his ceasing to be a member of the Assembly otherwise than by reason of a dissolution thereof or, if he is a member by virtue only of paragraph (b) of subsection (1B), on his ceasing to be qualified to be a member;
 - (c) upon being disqualified under subsection (4); or
 - (d) if the Assembly at any time so resolves.

(3) During any absence of the Speaker from a sitting of the Legislative Assembly such member as may be determined by the rules of procedure of the Assembly shall act as Speaker.

(4) A member who is elected to be the Speaker shall be disqualified from holding such office if after three months of his election to such office or at any time thereafter he is or becomes a member of any board of directors or board of management, or an officer or employee, or engages in the affairs or business, of any organization or body, whether corporate or otherwise, or of any commercial, industrial or other undertaking, whether or not he receives any remuneration, reward, profit or benefit from it:

Provided that such disqualification shall not apply where such organization or body carries out any welfare or voluntary work or objective beneficial to the community or any part thereof, or any other work or objective of a charitable or social nature, and the member does not receive any remuneration, reward, profit or benefit from it.

(5) Where any question arises regarding the disqualification of the Speaker under subsection (4) the decision of the Legislative Assembly shall be taken and shall be final.

Exercise of legislative power

11. (1) The power of the Legislature to make laws shall be exercised by Bills passed by the Legislative Assembly and assented to by the Ruler.

(2) No Bill or amendment involving expenditure from the Consolidated Fund of the State may be introduced or moved in the Legislative Assembly except by a member of the Executive Council.

(2A) The Ruler shall within thirty days after a Bill is presented to him assent to the Bill.

(2B) If a Bill is not assented to by the Ruler within the time specified in subsection (2A), it shall become law at the expiration of the time specified in that subsection in the like manner as if he had assented to it.

(3) A Bill shall become law on being assented to by the Ruler or as provided in subsection (2B) but no law shall come into force until it has been published, without prejudice, however, to the power of the Legislature to postpone the operation of any law or to make laws with retrospective effect.

(4) *(Repealed).*

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Eighth Schedule—(cont.)

Subsection (3)

The word “other” was deleted by Act A919, subparagraph (2)(a)(iii), in force from 21-07-1995.

Subsections (4) & (5): Added by Act A514, paragraph 16(b), in force from 15-05-1981.

Section 11

Subsections (3) & (4)

(a) These subsections were substituted by Act A566, paragraph 21(c), in force from 16-12-1983 and read as follows:

“(3) A Bill shall become law on being assented to by the Ruler. If for any reason whatsoever the Bill is not assented to within fifteen days of the Bill being presented to the Ruler, he shall be deemed to have assented to the Bill and the Bill shall accordingly become law.

(4) No law shall come into force until it has been published, without prejudice, however, to the power of the Legislature to postpone the operation of any law or to make laws with retrospective effect.”.

(b) Act A584, paragraphs 4(b) and (c), in force from 20-01-1984, restored the original subsection (3) as it was before the amendment made by Act A566 as it now appears and repealed subsection (4).

Subsections (2A) & (2B)

Inserted by Act A885, subparagraph 44(b)(i), in force from 24-06-1994.

Subsection (3)

The words “Ruler or as provided in subsection (2B)” substituted for the words “Ruler,” by Act A885, subparagraph 44(b)(ii), in force from 24-06-1994.

FINANCIAL PROVISIONS

No taxation unless authorized by law

12. No tax or rate shall be levied by or for the purposes of the State except by or under the authority of law.

Expenditure charged on Consolidated Fund

13. (1) There shall be charged on the Consolidated Fund of the State, in addition to any grant, remuneration or other moneys so charged by any other provision of the Constitution of the State or by State law—

- (a) the Civil List of the Ruler and the remuneration of the Speaker of the Legislative Assembly;
- (b) all debt charges for which the State is liable; and
- (c) any moneys required to satisfy any judgment, decision or award against the State by any court or tribunal.

(2) For the purposes of this provision debt charges include interest, sinking fund charges, repayment or amortization of debt and all expenditure in connection with the raising of loans on the security of the Consolidated Fund and the service and redemption of debt created thereby.

Annual financial statement

14. (1) Subject to subsection (3), the Ruler shall, in respect of every financial year, cause to be laid before the Legislative Assembly a statement of the estimated receipts and expenditure of the State for that year, and, unless the State Legislature in respect of any year otherwise provides, that statement shall be so laid before the commencement of that year.

(2) The estimates of expenditure shall show separately—

- (a) the total sums required to meet expenditure charged on the Consolidated Fund; and
- (b) subject to subsection (3), the sums respectively required to meet the heads of other expenditure proposed to be met from the Consolidated Fund.

(3) The estimated receipts to be shown in the said statement do not include any sums received by way of Zakat, Fitrah and Baitulmal or similar Islamic religious revenue; and the sums to be shown under paragraph (b) of subsection (2) do not include—

- (a) sums representing the proceeds of any loan raised by the State for specific purposes and appropriated for those purposes by the law authorizing the raising of the loan;
- (b) sums representing any money or interest on money received by the State subject to a trust and to be applied in accordance with the terms of the trust;

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NOTES

Eighth Schedule—(cont.)

Section 14

Subsection (3): See sections 15, 17(3) & 22.

Paragraph (3)(c)

1. Inserted by Act 19/1964, section 8, in force from 30-07-1964.
2. The words “federal or” inserted by Act 31/1965, subsection 2(2), in force from 01-07-1965, L.N. 289/1965 and 307/1965 corrected a printing error in the First Schedule to Act 31/1935.
3. The words “Islamic religious revenue” substituted for the words “Muslim revenue” by Act A354, section 45, in force from 27-08-1976.